

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #1	CCRB Case #: 202007949	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/23/2020 9:30 PM	Location of Incident: 90th Precinct Stationhouse	Precinct: 90	18 Mo. SOL 3/23/2022	EO SOL 5/4/2022	
Date/Time CV Reported Fri, 11/20/2020 10:00 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/20/2020 10:00 AM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. SGT Ramil Casimir	05184	950170	090 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A.SGT Ramil Casimir	Force: Sergeant Ramil Casimir used physical force against § 87(2)(b)				

Case Summary

§ 87(2)(b) filed the following complaint during a phone interview for CCRB case number 202007307 on November 20, 2020.

On September 23, 2020, at approximately 9:30 p.m., § 87(2)(b) and her sister, § 87(2)(b) went to the 90th Precinct stationhouse for information. Sgt. Ramil Casimir of the 90th Precinct told § 87(2)(b) and § 87(2)(b) to leave the stationhouse. Sgt. Casimir allegedly pushed § 87(2)(b) out of the stationhouse (**Allegation A – Force:** § 87(2)(g)).

No BWC video was found for this incident (Board Review 01). Due to the late filing of this complaint, stationhouse footage had already expired.

Findings and Recommendations

Allegation (A) Force: Sergeant Ramil Casimir used physical force against § 87(2)(b)
§ 87(2)(b) stated that she went to the 90th Precinct stationhouse to get information on one of her cousins who got arrested earlier in the day. § 87(2)(b) and her sister, § 87(2)(b) sat in the lobby of the stationhouse while waiting. § 87(2)(b) asked Sgt. Casimir, who stood near the desk, if she could go to the bathroom and he allowed her to do so. After coming out of the bathroom, Sgt. Casimir told § 87(2)(b) and § 87(2)(b) to get out of the stationhouse. Sgt. Casimir pushed § 87(2)(b) out of the front doors of the stationhouse by pushing her upper back with his palms. § 87(2)(b) stated that nothing had happened prior to the ejection from the stationhouse and had no context for what prompted Sgt. Casimir to ask them to leave (Board Review 02).

§ 87(2)(b) did not cooperate with the investigation or provide any statements.

Sgt. Casimir recalled being in the 90th Precinct stationhouse at this time while doing arrest processing for an unrelated arrest. However, he could not confirm that it was on September 23, 2020. Sgt. Casimir's memo book for the day has him ending his tour at 3:00 p.m. (Board Review 04). He saw § 87(2)(b) and § 87(2)(b) recording with their cellphones in the main lobby of the stationhouse. They were angry and yelling but Sgt. Casimir did not recall what they were angry about and did not recall the context of the situation. Sgt. Casimir recalled that there was a rape victim providing a statement in the complaint room located to the right upon entering the stationhouse. This room had no door and he did not want § 87(2)(b) and § 87(2)(b)'s phone recording to capture the victim's statement. Sgt. Casimir asked them to stop recording and pointed out a sign that stated recording was not allowed in the stationhouse. He asked them to leave multiple times and they refused. He used his right arm to guide § 87(2)(b) out of the stationhouse but did not recall making any physical contact and denied pushing her through the doors (Board Review 03).

The 90th Precinct Command Log had no mention of § 87(2)(b) or this incident at the stationhouse (Board Review 05).

Aside from § 87(2)(b) stating that she was at the stationhouse for information on her cousin, neither § 87(2)(b) nor Sgt. Casimir could provide context about the situation at the stationhouse. § 87(2)(b) stated that nothing had happened prior to Sgt. Casimir asking her to leave. Sgt. Casimir knew that she and § 87(2)(b) were upset, yelling and recording but did not recall why. Sgt. Casimir stated that his reason for asking them to leave due to their behavior and the nearby rape victim in their complaint room but denied pushing § 87(2)(b) through the

§ 87(2)(b), § 87(2)(g)

- § 87(2)(b)
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- Sgt. Ramil Casimir has been a member of service for nine years and has been a subject in 12 CCRB complaints and 24 allegations, none of which were substantiated. § 87(2)(g)

- § 87(2)(b) declined to mediate this complaint.
- As of March 11, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to this complaint (Board Review 07).
- According to the Office of Court Administration (OCA), § 87(2)(b) has no history of convictions in New York City (Board Review 08).

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____